STANDARD OPERATING PROCEDURE	G-1210

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **07/27/22**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE	RESOURCES
GENERAL	

SUBJECT	CROSS REFERENCE
EMPLOYEES INVOLVED DOMESTIC VIOLENCE	G-2100 COMPLAINT PROCEDURE G-7600 EMPLOYEE ASSISTANCE PROGRAM P-3460 DOMESTIC VIOLENCE

I. Purpose:

The purpose of this policy is to provide guidelines for addressing incidents of domestic violence involving sheriff's office employees.

II. Policy:

This policy offers a comprehensive, pro-active approach to domestic violence involving Sarpy County Sheriff's Office employees with an emphasis on victim safety and delineates a policy of zero tolerance. It is imperative to the integrity of the profession of law enforcement and to the community that the Sarpy County Sheriff's Office make a definitive statement that domestic violence shall not be tolerated.

Federal law prohibits law enforcement officers convicted of qualifying misdemeanor domestic violence offenses from possessing firearms. Deputies found guilty of a qualifying domestic violence crime through criminal proceedings shall be terminated.

III. Definitions:

Domestic Violence is abusive behavior that is used by one partner to gain or maintain control over another intimate partner. Abuse may happen through various means such as physical, sexual, emotional, psychological, threats and/or stalking.

Intimate partner means a spouse; a former spouse; persons who have a child in common whether or not they have been married or lived together at any time; and persons who are or were involved in a dating relationship. For purposes of this policy, dating relationship means frequent, intimate associations primarily characterized by the expectation of affectional or sexual involvement, but does not include a causal relationship or an ordinary association between persons in a business or social context.

IV. **Procedures:** Procedures for employees involved domestic violence shall contain four components: Prevention and Training, Early Intervention, Incident Response Protocol, and Post Incident Protocol.

A. **Prevention and Training:** The Sheriff's Office shall adhere to a zero-tolerance policy towards employee involved domestic violence and shall not tolerate violations of this policy. The Sheriff's Office shall provide ongoing training to all employees regarding domestic violence and the zero-tolerance policy.

1. Through collaboration with the Sarpy County Coalition Against Sexual and Domestic Abuse (CASDA), the Sarpy County Sheriff's Office shall provide training to deputies and supervisors regarding domestic violence and warning signs.

2. The Sheriff's Office shall also use a variety of training techniques including in-service, roll call training, field training for probationary deputies, and training bulletins to regularly reinforce policy standards and procedures. This training shall be provided to sworn and civilian employees.

B. **Early Intervention:** It shall be the policy of the Sheriff's Office to attempt to prevent domestic violence situations through pre-hiring screening, monitoring of employees and intervention.

1. **Pre-Hire Screening:**

a) All candidates shall be questioned regarding engagement in or investigations for domestic violence. They shall also be asked about any past arrest, convictions and protection orders related to child abuse, sexual assault, stalking, or domestic violence.

b) Those candidates admitting to or found to have a history of violence (including, but not limited to: elder abuse, child abuse, sexual assault, stalking, or domestic violence) shall not be hired.

c) Candidates shall be clearly informed of the Sheriff's Office zero tolerance concerning domestic violence.

2. **Sheriff's Office Responsibilities:**

a) The Sheriff's Office shall, either in response to observed warning signs or at the request of an employee, intimate partner, or other family member, provide non-punitive avenues of assistance before an act of domestic violence occurs.

b) The Sheriff's Office shall inform employees of the procedure for seeking confidential referrals, either internally or externally, to confidential counseling services (see G-7600 Employee Assistance Program).

c) A disclosure on the part of any employee, intimate partner or family member to any member of the Sheriff's Office that an employee has been engaged in domestic violence shall be treated as an admission of a crime and shall be investigated both administratively and criminally (see G-2100 Complaint Procedure).

3. Supervisor Responsibilities:

a) Supervisors shall be aware of and document any pattern of abusive behavior potentially indicative of domestic violence including but not limited to:

(1) Aggressiveness

(a) Excessive or increased use of force.
(b) Stalking or inappropriate surveillance activities.
(c) Unusually high incidences of physical or verbal altercations.
(d) Citizen or fellow employee complaints of aggression and verbal abuse.
(e) Inappropriate treatment of animals.
(f) On- or off-duty injuries.

(2) Domestic violence-related issues

(a) Monitoring and controlling any family member or intimate partner through such means as excessive phone contact.
(b) Stalking any intimate partner or family member.
(c) Continual disparaging of an intimate partner.

(3) Deteriorating work performance

(a) Tardiness.
(b) Excessive absences.
(c) Alcohol or drug abuse.

b) When a supervisor notes a pattern of problematic behavior, he or she shall:

(1) Address the behaviors with the employee and document all contacts.

(2) Forward all documentation to the appropriate division commander in a timely manner to determine the need for discipline.

(3) When warranted, request the employee be ordered to seek assistance from a certified program for batterers and/or a counselor.

4. Employee Responsibilities:

a) Employees are encouraged to take personal responsibility in seeking confidential referrals and assistance from the Sheriff's Office to prevent a problem from escalating to the level of criminal conduct against an intimate partner.

b) Employees who engage in the following actions shall be subject to discipline up to and including termination:

(1) Failure to report knowledge of abuse or violence involving a fellow employee.
(2) Failure to cooperate with the internal investigation of an employee domestic violence case (except in the case where the employee is the victim).
(3) Interference with cases involving themselves or other employees.
(4) Intimidation/coercion of witnesses or victims (i.e., surveillance, harassment, stalking, threatening, or falsely reporting).

c) Employees who learn they are the subject of any protective order proceeding, whether or not the order is issued and regardless of jurisdiction, shall immediately notify his or her shift supervisor and division commander.

(1) If subject to a qualifying protection order, any employee shall surrender all firearms to the Sheriff's Office. Failure to do may result in discipline up to and including termination.

(2) Deputies shall NOT be allowed to possess or carry any firearm if subject to a qualifying protection order.

C. Incident Response Protocols

1. The Sheriff's Office shall accept, document, and preserve all calls or reports, including those made anonymously, regarding domestic violence.

2. All reports of possible criminal activity implicating employees of the Sheriff's Office shall be documented in accordance with procedures governing the handling of reports of domestic violence involving citizens (see P-3460 Domestic Violence).

3. The on-duty shift supervisor, who shall respond to all domestic violence calls involving employees of the Sheriff's Office, shall forward a copy of any reports generated to the Sheriff through the chain of command.

4. If a crime has been alleged or a crime appears to have been committed the Sheriff or Chief Deputy shall determine who shall complete the criminal investigation.

5. If no crime has been committed, the shift supervisor shall complete an information report and forward a copy to the Sheriff through the chain of command.

D. Post Incident Protocol:

1. Whenever there is an allegation that an employee committed domestic violence, an administrative investigation shall be conducted following the procedures established in G-2100 Complaint Procedure.

2. If there are preliminary signs that an employee has committed domestic violence or that Sheriff's Office policies have been violated, administrative actions may be immediately taken against the employee, regardless of any criminal investigation and/or proceedings. These administration actions may include, but are not limited to: administrative leave; and removal of badge, duty weapon(s) and keycard.

3. If the administrative investigation reveals domestic violence has occurred, the employee shall be subject to disciplinary action, up to termination, regardless of any criminal investigation and/or proceedings.